Is Legal Responsibility Acquired by Educated *Imbeciles?* *

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The question of the legal responsibility of the insane has been frequently under discussion both by legal and medical writers; and its conditions and limits must, I fear, still be regarded as far from settled; divergent views being held, perhaps naturally, according to the standpoint respectively taken up by the lawyer and the physician. "A lawyer, when speaking of insanity," says Sir J. F. Stephen, "means conduct of a certain character; a physician means a certain disease, one of the effects of which is to produce such conduct." It is somewhat remarkable that the legal responsibility of the idiot, and of his milder congener, the imbecile, has hitherto hardly been deemed worthy of discussion; but a recent law case, in which several patients under my care were concerned, has led me to think that a few remarks on the subject may not be altogether uninteresting or unprofitable.

It would seem that the earliest legal definitions of madness correspond rather with the mental states now known as amentia and dementia than with the acute forms of insanity. Thus Bracton in the thirteenth century speaks of a madman (*furiosus*) as "one who does not understand what he is doing (*non intelligit quod agit*), and, wanting mind and reason, differs little from brutes." Littelton "explaineth a man of *no sound memorie* to be *non compos mentis.*" Sir Edward Coke, commenting on the above, is the first to recognise different classes of mental unsoundness, describing four kinds of men who may be looked on as *non compos mentis.* † "1. Ideota, which from his nativitie by a perpetuall infirmitie is *non compos mentis.* 2. Hee that by sickness, griefe, or other accident, wholly loseth his memorie and understanding. 3. A lunatique that hath sometimes his understanding and sometimes not, *aliquando gaudet lucidis intervallis*, &c.; and lastly, Hee that by his own vitious act for a time depriveth himself of his memorie and understand-

* Throughout this paper the term *imbecile* is used to denote a person suffering from mental deficiency, either congenital or supervening in infancy, the degree of such deficiency being less than that denoted by the term idiocy.

† "Coke upon Littelton," 247A.

ing, as hee that is drunken." The first two classes are indeed in old writers both described under the name of *idiot*; No. 1 being *idiota a nativitate*, and No. 2, *idiota a causâ et infirmitate.* I note in Paris and Fonblanque's "Medical Jurisprudence"* cases cited in which it had been stated "that an inquisition finding that a person had not had any lucid intervals *per spatium octo annorum*, was a good finding of *idiocy*," *lunacy* being evidently regarded as possessing different characteristics from *idiocy.* It was reserved for a later age legally to confound and confuse under the common designation of *lunatic* "any person found by inquisition idiot, lunatic, or of unsound mind, and incapable of managing himself and his affairs" (16 and 17 Vict., c. 70, and 25 and 26 Vict., c. 86). Henceforward the essential difference between the imperfect and ill-ordered mental action of idiocy and the deranged and disordered mental action of insanity seems to have been somewhat lost sight of in the course of legislation; in some sense, indeed, idiocy may be likened to the Cinderella of the unhappy family under the jurisdiction of the Lunacy Commissioners.

Notwithstanding this confusion it would seem that there still lingers in legal authorities some notion of the idiot's individuality. Thus in a recent case of homicide, the proof of which, so far as eye-witness was concerned, depended upon the testimony of imbeciles,† "Archbold's Criminal Pleading" was quoted to the effect that "an *idiot* shall not be allowed to give evidence, but a *lunatic* during a lucid interval may." The case referred to was that of an imbecile lad, an inmate of the Royal Albert Asylum, who, having been startled and provoked by a younger patient suddenly denuding him of his bedclothes, jumped out of bed, knocked down his assailant, and bumped his head against the floor with such effect as to cause death from fracture of the skull, which was abnormally thin. The attendant was temporarily absent from the dormitory on a necessary duty, but the affray was witnessed by several imbecile boys who were awake at the time, and, of these, three, who seemed best able to give an account of what they had seen, were tendered as witnesses at the coroner's inquest. The Coroner (Lawrence Holden, Esq.), in opening the enquiry, said: "Some of the evidence would be peculiar in this respect—that they would have to rely on the evidence of boys who were imbecile if not idiotic. If the doctor, who would be called before them,

* "Medical Jurisprudence," Paris and Fonblanque (London, 1823), Vol. i., p. 290.
† "Archbold, C. P.," p. 288.

said that the boys who witnessed the transaction were able to give evidence, he (the Coroner) should receive that evidence. It was for the Coroner to admit such evidence as he thought proper, and it was for the jury to decide afterwards upon the amount of credibility they would attach to that evidence." Accordingly as each imbecile witness was tendered for examination I was called on to state that in my opinion he was "capable of judging between truth and falsehood, and able to give credible testimony." Three imbecile lads were consequently allowed to give evidence, and in one case in which speech (owing to partial paralysis) was indistinct, I was permitted to act to a certain extent as interpreter, the Coroner being also good enough to accept some of my suggestions as to the form in which his questions would be most intelligible to the witnesses. Under these circumstances the evidence of the lads, who were sworn in the usual way without special interrogation as to their views of an oath, was sufficiently clear and consistent to obtain credibility from the jury, who accordingly returned a verdict of manslaughter against the accused.

At the magisterial inquiry which followed at the County Petty Sessions, the competency of the imbecile lads to give evidence was objected to by the solicitor for the defence, who quoted from Archbold the dictum that "an idiot shall not be allowed to give evidence," (this being founded upon "Coke upon Littelton," 6 B), and maintained that in the absence of any precedent to the contrary "a boy coming from an asylum for idiots could not give reliable evidence." Fortunately the Bench was particularly strong in legal acumen, amongst the sitting magistrates being W. H. Higgin, Esq., Q.C., and E. B. Dawson, Esq., LL.B., both members of the Bar. The former, while admitting a *primâ facie* objection to the competency of a boy coming from an idiot asylum, said that, nevertheless, if he should be found on examination "to believe in the existence of a God, and to believe in a future state either of reward or punishment; if he knew what telling an untruth was, and if in kissing the Testament he knew what that kissing meant, although that boy did come from an idiot asylum still he might be a perfectly competent witness." Mr. Dawson remarked "that the authorities quoted by the solicitor for the defence were old ones, though they might be very good for the time in which they were written, when it was considered that a person suffering from amentia could not be a credible witness nor his position improved; but they knew that by the care which had been bestowed in recent years upon such persons, a degree of

information had been imparted to them that they might be accepted as competent witnesses. The question was whether they should go back to the days of Coke and Littelton, and be ruled by their judgments which were given according to the lights they then had." Ultimately it was decided to follow the procedure in the case of Reg. *v.* Hill, and I was examined as to the first witness's information as to religion and the nature of an oath, and also as to the degree of his mental deficiency. I was able to say that he knew it was wrong to tell a lie, as he had stated to me that persons who told lies after kissing the Testament were (to use his own words) first "shut up in the Castle, and then if they died went to the old fellow with the fork!" Interrogated as to whether the boy was admitted into the asylum as an *idiot*, I explained that he was an *imbecile* of a comparatively high degree of understanding, and not an *idiot* in the sense of being entirely destitute of intelligence. He could now read and write imperfectly, and was a capital workman in the joiner's shop, though only fifteen years of age. Thereupon the lad was called into the box, and a number of questions were put to him by the Bench and through the honorary solicitor of the Asylum with a view of ascertaining how far he understood the nature of an oath. These questions being addressed to him by persons with whose converse he was unfamiliar, were evidently not fully comprehended by him. To the question, "What do you mean by an oath?" no intelligible answer was given; but when by way of explanation he was asked, "Can you tell us anything about swearing?" the reply, "It's what bad lads do," argued, I think, some acquaintance with the third commandment! In the result the magistrates ruled that in consequence of the unsatisfactory replies of this lad to their interrogatory, his evidence was not admissible, and the same ruling was held to apply to the other imbeciles who were to be tendered as witnesses. The accused was consequently discharged by the magistrates, but having been committed on the Coroner's inquisition, he was brought up (from bail) for trial at the Lancaster Summer Assizes.

At the Assizes the Judge (Sir James Fitzjames Stephen) ordered an indictment to be drawn and submitted to the Grand Jury, who consequently examined the witnesses upon their depositions, and apparently took no exception to the imbecile evidence, as they found a true bill against the accused. The accused was accordingly put forward in Court to be arraigned, but the Judge, interposing, directed that the jury should be sworn to decide "whether the poor boy was in a condition to

plead in answer to the charge against him—not whether he was guilty of manslaughter." I was thereupon called to depose to his state of mind, and deposed that in my opinion he was not able "thoroughly" to understand the nature of a criminal trial; that his mental condition was that of imbecility; and that he was unable to plead. On his Lordship's direction the jury found that "the prisoner was not able to plead," adding also "that he was not answerable for his acts." The accused was consequently discharged to the care of his father, who was bound over in his own recognisances to produce the lad for trial when called upon, the Judge having previously satisfied himself of the safety of that course.

This case involves the two-fold question of the civil capacity and the criminal responsibility of educated imbeciles; for I presume that, had it been established that the imbecile witnesses were competent to give evidence on oath, the penalty for perjury would certainly have attached to them in the event of false statements. The further question of the degree of responsibility for crime which may fairly rest upon an imbecile according to the degree of his mental development was, owing to the prisoner being declared unable to plead, not entered upon in court, though it comes within the scope of our present discussion.

In considering the question of civil capacity we will first look at that aspect in which it has already come before us, viz., the competency or otherwise of an imbecile to give evidence in a court of justice. The ancient objection already quoted, that "an *idiot* shall not be allowed to give evidence," may, I think, soon be disposed of by inquiring what meaning formerly attached to the term idiot. If we turn to "Blackstone's Commentaries," Book I., p. 302, we shall find this definition: "An idiot, or natural fool, is one that hath no understanding from his nativity, and therefore is by law presumed never likely to attain any." For such an idiot no one could possibly claim competency to give evidence. But on p. 304 we read: "A man is not an idiot if he hath any glimmering of reason, so that he can tell his parents, his age, or the like common matters." We may, I think, therefore fairly cite Blackstone as not shutting out from personal rights such imbeciles as are found in the higher classes of our Training Institutions. Having regard to the very various gradations of mental power which we find even in the same school-class of imbecile pupils, it seems to me it would be impracticable to formulate any test of competency of universal application;

but some analogy may perhaps not unreasonably be traced between the lucid or illuminated portions of the imbecile's intellect and the lucid intervals of the insane, and competency be measured by lucidity. Thus an imbecile may be able to give a correct account of the successive incidents of a transaction which he has recently seen, because his general powers of observation have been cultivated; at the same time, he may go utterly wrong if asked (for instance) how many times a blow was struck, from his incapacity to count or comprehend the meaning of figures. It would be as unjust to reject the whole evidence of such an one on account of his failure with regard to numbers, as it would be to reject that of a colour-blind man with regard to the incidents of a street fight because he might mis-describe the hues of the costumes of the combatants. Then, again, with respect to the understanding by an imbecile of the nature and moral obligation of an oath, it may (I think) be fairly argued that if he understand that he is punishable both here and hereafter for falsehood after having solemnly promised (by kissing the Testament) to speak the truth, he understands all that is essential, though he may not be able to explain his theological views in open court. On the important subject of the testimonial capacity of imbeciles, I may quote the remarks of Mr. Balfour Browne.* "In many cases," says he, "imbeciles are competent to give very useful evidence, and to further the ends of justice, which but for their evidence could not be efficiently promoted. The question of the credibility of a person of weak mind, which is left to the jury, is very much the same as that which falls to be considered by them with respect to witnesses who have scarcely reached the years of discretion. In the case of R. *v.* Perkins, Alderson, B., said: "It is certainly not the law that a child under seven cannot be examined as a witness. If he shows sufficient capacity on examination a judge would allow him to be sworn." In many respects idiots are to be regarded as children, and their evidence, where it is unsatisfactory, will have failed in virtue of the same, or similar, qualities which take from the excellence of the testimony of very young children." The mental plasticity of imbeciles is another point in which they resemble children, and the possibility of their being tutored to relate as matters of observation what is really but an "oft-told tale" must not be lost sight of. Some caution also is necessary with regard to their evidence on matters which are

* "Medical Jurisprudence of Insanity," p. 305.

not recent, as many educated imbeciles have but indifferent memories for events at all remote.

I do not propose to do more than make a passing reference to the capacity of educated imbeciles to enter into contracts and otherwise manage their own affairs. Personally I have known very few who might prudently be allowed to do so, for figures and accounts are almost invariably ill understood by imbeciles, though, if my memory serves me, I have read of a former patient of an idiot asylum who was acting as agent of a loan society! With the majority, however, the safest course is certainly a life-long tutelage, and now that the Crown no longer claims the profits of the estate of one found *idiota a nativitate*, there seems but little hardship in a perpetual infancy under the guardianship of Chancery. The contract of marriage is certainly one into which no imbecile, however well educated, should be permitted to enter.

Passing now to the question of the criminal responsibility of idiots and imbeciles, I think I cannot do better than quote from the admirable chapter on the Relation of Madness to Crime in Sir J. F. Stephen's "History of the Criminal Law of England."* The learned author, after referring to the hypothesis "that certain forms of insanity cause men to live as it were in waking dreams," goes on to say that "knowledge has its degrees like everything else, and implies something more real and more closely connected with conduct than the half-knowledge retained in dreams. This last observation is specially important in connection with the behaviour of idiots, and persons more or less tainted with idiocy. Such persons will often know right from wrong in a certain sense, that is to say, they will know that particular kinds of conduct are usually blamed, but at the same time they may be quite unable to appreciate their importance, their consequences, and the reasons why they are condemned, viz., the suffering which they inflict and the alarm which they cause. An idiot once cut off the head of a man whom he found asleep, remarking that it would be great fun to see him look for it when he woke. Nothing is more probable than that the idiot would know that the people in authority would not approve of this, that it was wrong in the sense in which it was wrong for a child not to learn its lesson, and he obviously knew that it was a mischievous trick, for he had no business to give the man the trouble of looking for his head; but I do not think he could know it was wrong in the

* Stephen's "Hist. of Crim. Law," Vol. ii., p. 166.

sense in which those words are used in the answer of the judges to the House of Lords "—(*i.e.*, in McNaghten's case). The view thus lucidly set forth by a distinguished judge will, I think, commend itself to all who have had practical acqaintance with imbeciles. Truly "knowledge has its degrees," and the degree of knowledge in the case of the educated imbecile will, of course, vary with his original capacity and the degree of mental development which has resulted from education. It will require but little capacity or education to know that a blow hurts, or even to learn that it is wrong to hurt a companion. To know that a blow on the head may cause death by fracturing the skull is a higher degree of knowledge, only to be imparted to the imbecile by special instruction; for without this he may very possibly imagine that such a proceeding may produce no more grievous bodily harm than it apparently does in the case of Punch and Judy. It is obvious that the same measure of criminal responsibility cannot justly be held to attach to the imbecile with the higher and to the imbecile with the lower degree of knowledge, though in both cases there may be said to be *some* knowledge of right and wrong. While I should be the last to advocate the plenary punishment by law of any congenital imbecile, however much improved by education, I think it a dangerous doctrine that such persons should escape all punishment simply because they have been imbecile. The punishment should (it seems to me) bear some relation to the degree of knowledge of right and wrong possessed by the individual, allowance being moreover made for the defective judgment which may, in a particular case, interfere with the application of such knowledge. At best, the knowledge and judgment even of an educated imbecile must be reckoned as imperfect by the side of those of his "normal" fellow-man; and though committing things "worthy of stripes" his stripes should in comparison be few. Yet I think we may fairly claim that, along with the knowledge imparted by education, the imbecile does acquire responsibility in measure and degree, so that to him also society may apply, always with a wise discretion, the Scriptural maxim, "To whom men have committed much, of him they will ask the more." *

* It may perhaps be well to add that the unfortunate subject of the judicial investigations above referred to was but little improved by education, so that his case hardly falls within the scope of the concluding remarks.

Definitions of Insanity. By William R. Huggard, M.A., M.D., M.R.C.P.Lond.

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An old teacher of mine, in days gone by, used frequently to remark in his lectures on Logic that the test of accurate knowledge is the ability to give an exact and comprehensive definition. Now, if this criterion were applied to us, alienists, in regard to the subject we are supposed to know most about, the result would, I fear, be somewhat disastrous, and not at all likely to shed lustre on our speciality.

To start with, let us have a clear idea of what we want to do when we wish to define a word. What is a definition? A definition expresses the meaning of a word, and that only; it fixes by language the connotation of a general name. It states the essential points in which all objects agree to which the term can be applied—those points of community the absence of one of which warrants the refusal of the name. It follows from this, of course, that a definition is a verbal or identical proposition. It does not convey any new fact; it does not state anything capable of proof or disproof. It only expresses in full what is meant when the word is employed. If it increases our knowledge, it is only because a clear idea is substituted for a hazy one.

We are now in a position to look into the opinions of those who say that insanity cannot be defined. One view holds that insanity is a simple or ultimate fact, incapable of analysis or resolution; that, as 'whiteness' can be explained only by showing white objects, so insanity can be explained only by exhibiting insane persons. The test of this opinion lies in the possibility of analysis, and that test shall presently be put in action.

Another view states that the manifestations of insanity are so various and contradictory that no one definition can include them all. This, it appears to me, is the essence of the difficulty; though the language employed clouds the real aspect of the facts. The true import of the facts, the accurate expression of the difficulty, is this: The term insanity is arbitrarily restricted by custom to certain cases, some of which do not differ in essence from cases to which the name is not applied. The delirium of fevers and that due to drugs are not ordinarily termed insanity. Yet if a crime were committed in the delirium

of fever there can be little doubt that a plea of temporary insanity would be allowed. In delirium from drugs the test of legal responsibility, according to Dr. Chevers, is the question whether the unsoundness of mind was wilfully caused by the person himself. Under some circumstances, therefore, and for some purposes, it will be acknowledged that the delirium of fever and the delirium of intoxication would be classified as insanity. The circumstances, nevertheless, that determine such an opinion are purely accidental or extrinsic, and have no reference to the essential phenomena observed in the patient. The delirium of fever would be called insanity if it led to crime. If bhang, taken by compulsion, brought on a state of frenzy, this, too, would be called temporary insanity. The mental derangement in intoxication differs from some cases of universally recognised insanity only in the different duration of the symptoms. And yet chronicity is properly regarded by all as not being an essential factor of insanity. In essential points it follows, therefore, that these cases are identical.

We see, then, that custom makes arbitrary restrictions, restrictions not founded on essential points. It is not to be wondered at, then, if it is found difficult to define insanity when an attempt is made to reconcile science and custom as it stands at present.

Glance at the current definitions. One of the features most commonly regarded as an essential is that the mental symptoms must be caused by disease. This view appears to me to be open to two objections. It is unsound in point of logic and too narrow in point of fact.

As to the logic, supposing it to be true in fact. There are two reasons here why the causation should not be included in the definition. The statement of the cause is a real, not a verbal or identical proposition. It is not involved in the meaning of the term. If in a case of insanity it could be discovered that there were no disease, we should not on that account refuse the name. The second reason why it is bad logic to define insanity by disease is less technical. It is this. The definition moves in a circle. Insanity proves that disease is present, whilst in its turn the disease proves the symptoms to be insanity. It would, indeed, not be illogical to say that insanity is a disease, meaning thereby that the term disease might be applied to the group of phenomena characterising every case of insanity. Such a use of the word "disease" would not, however, be in accordance with the

meaning given to that word in the other applications of it, as I think will presently be seen.

Another view taken of insanity is to say that it is a condition of mind in which the free-will has been destroyed by disease. This point, and the question whether disease is always present in insanity, will be dealt with in the exposition of the view now to be laid before you.

In the first place, and chiefly, then, insanity, as I understand it, must be regarded as a relative term—as a social or legal expression rather than as a medical one. It is, indeed, frequently said that insanity is a relative term—that what is a mark of insanity in one case is not a mark of insanity in another. It is not, however, in this comparatively trivial sense—the relative value of the marks of insanity in different cases—it is not in this sense that I use the expression 'relativity.' I use it in reference to the notion of insanity itself; that insanity is relative to what may be termed the standard of sanity; and further, that this standard of sanity is not a fixed and definite thing; that, on the contrary, it varies from time to time and from place to place, and that it has a constant tendency to rise with the progress of civilization.

The notion of insanity understood as a relative term involves still two elements. One is mental defect, congenital or acquired; the other concerns the nature and amount thereof.

In short, then, insanity may be said to be *any mental defect that renders a person unable to conform to the requirements of society.*

This definition comprises three notions—mental defect, inability, and the requirements of society. Two of these, inability and the requirements of society, must themselves have their meaning fixed.

To understand the meaning of ability or inability as used in the definition, it is needful to glance at the relationship between body and mind. As this point is fundamental, and as a clear grasp of it is essential to the right consideration of insanity, I trust I may be pardoned for recalling a few facts well known to all.

I am not going to take up your time with a discussion of the free-will controversy. I may say further that ontological questions touching the nature of mind and of matter are altogether irrelevant. Matter may be only a mode of mind, or mind may be only a function of matter. It does not concern us. Even allowing that mind and matter are both separate and independent entities, we have nothing to do with the

nature of the connection between them, or with the way in which one acts on the other. We may think with Descartes that there is a system of Occasional Causes; that when the mind makes a resolution, God prompts the body to the necessary movements for the performance of it. Or we may think with Leibnitz that there is a Pre-established Harmony—that the mind and body were originally so tempered and welded together, that the mental effort and the physical movement are simultaneous; that, in fact, body and mind, like two clocks, are wound up to go together.

It was needful to say so much to prevent misapprehension. Our sole object is to express the fact of the concomitance of mental and nervous action, and to state the laws that bind together the two series of phenomena—mind and matter.

The general laws connecting body and mind may, I think, in so far as they concern us, be formulated somewhat in this manner :—

I.—The brain is the organ of mind, and all mental action is preceded or accompanied by molecular changes in some part of the higher nervous centres.

The evidence of this law is found in various facts. (1) Prolonged mental exercise induces a sense of fatigue in the head, just as prolonged gymnastic exercise produces a sense of fatigue in the muscles. (2) Injuries and diseases of the brain are attended with mental symptoms. The facts put before us by experimental researches on the functions of the brain are of especial value in this connexion.

A second law of wide reach, which may be called the Law of Quality or of Kind, may be expressed as follows :—

II.—As is the constitution or structure of the brain, so will be the mind and character; and likewise, if it be preferred, as is the mind and character so will be the constitution and intimate structure of the brain.

The proof of this law lies in three sets of facts: (1) the correlations of the anatomy and psychology of man, (2) the comparative anatomy and psychology of man and the lower animals, and (3) heredity. There is a gradation in brains corresponding to the gradations in mind. Idiots are deficient not merely in mind; they lack also the brain development. Moreover, heredity displays itself in mental not less than in physical characteristics. In such cases it is clear that the finer shades of character are determined by organization.

A third law, which might be called the Law of Plasticity, may be formulated thus :—

III.—Mental action tends to modify the constitution of the nervous tissues.

It is necessary here to guard against misconception from the phraseology employed. Any of these laws could be expressed either in terms of mind to suit the Idealist, or in terms of matter to suit the Materialist. In the case of the present law, for example, it might be said that the molecular changes that accompany mental changes tend to become themselves ingrained in the constitution or structure of the nerve-cells. Nevertheless, such language, however correct it might be, would fail for the purpose in hand. It would obscure or altogether hide the part of the law that is significant for us; that the mental phenomena—thoughts, emotions, and volitions—re-act on the body so as to mould its configuration. This is the ultimate meaning of education; and it is recognized in the popular expression, "formation of character." In accordance with this law, too, habits are formed. The emotions, moreover, stamp their impress upon the face; and the expression in repose denotes the predominant cast of mind. All the facts illustrating the effects of mind upon body are in point. Ideas become actualities. Sydenham could always bring on an attack of gout by thinking of his great toe for half-an-hour. This law, observe, is expressed rather as a tendency than as a fact. The limits within which it is operative are fixed by the Law of Quality or Kind.

These are the chief laws that regulate the interaction of body and mind. Whatever may be the ultimate nature of mind, there can be no doubt that it conforms to the material laws imposed upon it by its bodily organ. If mind be not a function of brain, it is at least held in absolute thraldom by it. Notwithstanding this, our attention must be directed, not to the physical phenomena, but to the mental; and for a very obvious reason. The presence and the nature of the mental phenomena are indicated with tolerable certainty by various marks; but the nature of the molecular changes that underlie a brilliant thought, or an insane idea, are alike beyond the reach of human eye. The important thing to remember is that the brilliancy and the insanity are equally impossible without the molecular changes; and that the nature of these changes, the circumstances that determine whether the thought shall be a spark of wit or an insane delusion, depend altogether

on antecedent physical causes, such as organization, congenital and acquired, as well as the molecular changes immediately preceding. Even supposing the mind to be a separate and independent entity, it must have an organization of its own, and obey laws as unbending and of the same nature as those that govern the instrument it uses.

From these facts it is evident that they err who say that the freedom of the will may be lost by disease. Leaving out of the discussion the expression "free will," we find that not less in health than in disease does the material organ determine the thoughts, desires and actions. But, perhaps, there may be a grain of truth underlying what they say; or, perhaps, they mean something which is true though by the form of expressing it they make it false. In health the thoughts and actions — the "choice"—are in harmony with the previously known mental organization; in diseases of the brain, accompanied by insanity, the mental phenomena are out of harmony with the only previously known factor, the mental organization, though they are still of necessity conformable to the physical organization. Thus in health, mind obtruding itself we are apt to forget that it is for us indissolubly linked to body, and consequently obedient to the laws of the matter that serves it. In disease it preserves the individuality thus fallaciously obtained; but here its total subjection to matter can no longer be concealed. It is, however, glossed over and disguised by recognizing merely the subjection of the will.

Those who have followed me so far will have no difficulty in understanding what is meant by ability in the definition. It means not so much, "Is he able?" as "Can he be made able?" Do the nervous structures, or if it be preferred, does the mental organization possess such plasticity that it can be educated up to the required standard? To put the matter in a less general form, in what does the lunatic who breaks the law differ from a criminal? The lunatic is not able to conform to the requirements of society, and cannot be made able. The criminal, on the contrary, though he may not have been able to withstand his temptation, will, if he is punished, be able to withstand it next time. In other words, if a man breaks the law he is either a criminal or a lunatic. If, owing to mental defect, punishment will not cure him, he must be regarded as insane; in other cases, as a criminal.

We come now to the last term in the definition, the requirements of society. It is in considering this point that we see the broad sense in which insanity is a relative term.

It is generally recognized that sanity and insanity shade into each other by insensible gradations; that they are not separated by any sharp line of demarcation; that though the extremes are clearly contrasted, the margin of transition is broad and ill-defined. This is true so far as it goes, but it falls short of the whole truth. Thus the opinion seems to prevail that the line of separation, though not clearly marked, is one altogether of Nature's making. We have good reason for thinking, however, that this is not so; and that the line is to a large extent conventional. Nature makes a broad margin of gradations, but the circumstances that determine in what place the line should be drawn are the result chiefly of convention and of accident.

Thus it can be readily understood, on the one hand, that a man able to conform to the laws of a primitive society, may be absolutely incapable of complying with the exacting requirements of a more advanced community; and on the other hand, that a man able to take care of himself in a pastoral or nomad stage of civilization may require to be taken care of in the more sharp-witted and dishonest civilization of to-day, when people rob not so much by violence as by fraud. In the lower types of society less self-control is required on the one hand, and less brains on the other.

For example, amongst a barbarous and ferocious people, the fury of the epileptic, the paroxysmal violence of the general paralytic, and the boisterous excitement of acute mania if evanescent, might in some cases differ so little in outward appearance from the normal manifestations of undisciplined passion that they would be passed over as transient outbreaks of temper. Again, there is a variety of mania to be found in every asylum, the manifestations of which are almost identical with slight intoxication. The mind is always in a state of excitement of one kind or another. The ideas flow with great rapidity, but are bound together not so much by a natural or logical association as by the varying emotion of the moment, or by some accidental connection, such as verbal similarity. Speech, though not actually incoherent, is inconsecutive. These lunatics are mischievous and cunning. Though they lack self-control, yielding to every passing impulse, they can, like drunken people, pull themselves together, so to speak, under the spur of a strong emotion or of impressive circumstances. Thus at times they can hide their delusions, if they happen to have any, and can talk connectedly and with as much shrewdness and common sense as any sane man.

Who can doubt that, in a stage of civilization somewhat

lower than ours, such persons would be regarded as of sound mind? To this it may be answered that the reason would simply be that their insanity was not recognized; that they were not the less on that account really insane.

This answer will not, however, stand examination. It proceeds on that narrow and erroneous view of insanity that regards it as something fixed and absolute, and not merely as a relative term.

It may be laid down in general terms that the question of insanity cannot arise except in regard to matters that are below the general standard of the particular society. There can be no insanity in matters that are indifferent. It would be unmeaning to talk of homicidal mania as a form of insanity where murder is a recognized social habit. If one of the assassins of the Middle Ages, or one of the Thugs of India felt a homicidal impulse, he had no difficulty in satisfying his desire at once. Amongst the Kamtschadales murder, suicide, adultery, and rape were looked on as in themselves quite indifferent matters; while to rescue a man from drowning was regarded as a mortal sin. In this last case there might be some suspicion of a man's intellect if he saved a friend's life, but none if he destroyed it. Hence the derangements in question if recognized would only be regarded as diseases of the nervous system, not accompanied by insanity.

What is meant by the requirements of society or the mental standard may be further illustrated by one or two examples from our own times and from our own country. Take the case of sexual excesses. A sexual tendency that overbalances prudence and conquers self-control would in a young lady of high station be regarded as nymphomania, and would be held to warrant any restraint that might be necessary. In a young man of the same circumstances, the case would be looked on simply as one of "wild oats." Disease is not necessarily present any more in the one case than in the other. Should public opinion ever come to condemn sexual excesses as severely in men as in women, an attempt to sow "wild oats" will be regarded as a definite form of insanity. Habitual drunkenness is another example. It may be said to be in a stage of transition. Not until recently has it been held to be a form of insanity. One author of eminence still holds it to be a vice, and nothing else. A hundred years ago drunkenness was thought nothing of. A hundred years to come the insanity of the habitual drunkard will be unquestioned.

An instructive case of "Emotional Insanity with Homicidal Violence" is recorded in the "Journal of Mental Science" for

Jan. 1882. A young lady of mixed blood (father an Englishman, mother a Persian) had a most ungovernable temper. On one occasion she made a fierce attack with a pair of scissors on another lady. Upon this she was put in an asylum, and the Commissioners in Lunacy approved of the step. The writer of the article, however, though he regarded her confinement as perfectly justifiable, nevertheless did not consider her insane, and he accounts for her temper by her racial characters and by her mixed descent. As I understand the word insanity, that woman was genuinely insane in reference to an English standard of sanity. She was *unable* to conform to the requirements of English society. Her disposition was so ingrained in her that mere punishment could not cure it.

This case, too, shows why I think it wrong to speak of insanity as being a disease, much more to its being considered as of necessity caused by disease. The word disease is too narrow: insanity may be due not only to disease but to congenital defect. In fact, most cases of moral insanity are of this last description. The defect may be of the nature of an original absence of balance of the various faculties or appetites, or an imperfect quality of the organism characterised by little plasticity. In the case just mentioned the ordinary characteristic of one race becomes a defect in a race more highly organized. A large proportion of what are known as incorrigible criminals would also be found to come under this head. And should that day ever come when it is considered more important to prevent crime than to discover the criminal, an effective machinery of supervision will put it out of the power of persons labouring under congenital or acquired mental defect to damage irretrievably other members of the community. It is not, as some have declared, a sufficient test to say that a man differs from his former self; that whereas he was once amiable and affectionate, he is now irritable and morose. That this test omits cases of congenital defect where there has not been a change in the character is decisive against it. And again, in many cases, though the character is changed and the change is due to disease, it is not of such a kind or is not so great in amount as to constitute insanity.

It may perhaps be said that the definition here put forward does not serve as a *test* of insanity. It is not meant to do so. That is not the business of a definition. We may know what constitutes insanity, and yet be unable to lay down a satisfactory test, or set of tests, that will indicate unfailingly the presence or absence of the essential elements. The definition only shows what we must try to find out.

It may further be said, that delusions are not included. But they are included in so far as they concern us. If a delusion is of such a kind or of such degree that it does not interfere with conduct or with the ordinary affairs of life, it cannot, according to the meaning here given to insanity, be considered an insane delusion.

One point further requires explanation. A standard implies that there must be some persons to make the assay; some persons to judge each case by reference to proper tests. The standard, in the last resort, is public opinion; and it is represented indirectly in the professions of medicine and of law, and directly in a Board of Commissioners.

May I be permitted to say a word here about a definition of insanity given by Dr. Charles Mercier in a somewhat elaborate paper on the "Nature of Insanity?" Dr. Mercier defines it as "a failure of the organism to adjust itself to its environment." Without criticising the way in which the definition was reached, I may say that it appears to me to have three faults. First, it defines an obscure term by others still more obscure. In this respect it reminds one of Dr. Johnson's definition of network. That eminent scholar said that network was "anything reticulated or decussated, having interstices between the points of intersection!" Secondly, it is vague. What amount of mal-adjustment constitutes failure? It may be so understood that it includes, or that it excludes, all persons whatever. Everyone fails to adjust himself to his environment in some ways. In a broad sense, on the contrary, the inexorable laws of nature do not permit such a thing as mal-adjustment at all; everything fits in perfectly. The third fault is, that it is too narrow. It does not take account of the insanity so long as it remains in thought, though it may be quite evident that it will soon express itself in action. The failure must first occur. And again, an acute maniac, who, when put into a padded room, knocks his head against the wall, adjusts himself to his environment, and so, by virtue of the definition becomes sane.

In conclusion, I may remark that it is a principle of nomenclature that every term should have a definite meaning, and that every important idea should have a term to represent it. I submit that the term insanity has hitherto been without this definite meaning, and that the meaning I have ascribed to it is an important and definite idea requiring a term of its own, and that moreover it is the meaning that underlies every application of the term insanity.